

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201607994	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 09/10/2016 6:30 PM	Location of Incident: § 87(2)(b); 108th Precinct Stationhouse		18 Mo. SOL 3/10/2018		Precinct: 108
Date/Time CV Reported Sun, 09/18/2016 7:31 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Sun, 09/18/2016 7:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Rosa	05587	959157	108 PCT
2. POM Kenneth Mcloughlin	07984	956912	108 PCT
3. SGT Steven Bennett	00082	929705	108 PCT
4. POM William Caldarera	13094	950137	T.A.R.U

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Oscar Lopez	19733	958834	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Caldarera	Abuse: Police Officer William Caldarera entered § 87(2)(b) in Queens.	A . Exonerated
B . POM Kenneth Mcloughlin	Abuse: Police Officer Kenneth Mcloughlin entered § 87(2)(b) in Queens.	B . Exonerated
C . POM Anthony Rosa	Abuse: Police Officer Anthony Rosa entered § 87(2)(b) in Queens.	C . Exonerated
D . SGT Steven Bennett	Discourtesy: At the 108th Precinct Stationhouse, Sergeant Steven Bennett spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Steven Bennett	Off. Language: At the 108th Precinct Stationhouse, Sergeant Steven Bennett made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via email on September 18, 2016 (**15 Board Review**).

§ 87(2)(b) resides at § 87(2)(b) in Queens (hereafter referred to as § 87(2)(b)). § 87(2)(b) has a contentious relationship with the management of § 87(2)(b). On September 10, 2016, § 87(2)(b) had a “collision” on the stairs inside of § 87(2)(b) with § 87(2)(b). As a result of the “collision,” PO William Caldarera and PO Oscar Lopez responded to the location at approximately 6:30 PM. PO Caldarera and PO Lopez were joined by PO Kenneth McLoughlin and PO Anthony Rosa. PO Lopez went to the roof, and PO Caldarera, PO McLaughlin, and PO Rosa entered § 87(2)(b) (**Allegation A, Allegation B, Allegation C**), and arrested § 87(2)(b). Sgt. Bennett arrived at the location and verified § 87(2)(b)'s arrest.

At the 108th Precinct stationhouse, Sgt. Bennett allegedly said that the “XO” of the precinct knew “this asshole” (**Allegation D**) in reference to § 87(2)(b) and allegedly called § 87(2)(b) a “cocksucker” (**Allegation E**).

§ 87(4-b), § 87(2)(g)

There is no video evidence regarding this incident.

§ 87(2)(b) was arrested and charged with § 87(2)(b) (11 **Board Review**).

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On September 23, 2016, a Notice of Claim Inquiry returned negative results from the NYC Comptroller’s Office (**01 Board Review**).

Civilian and Officer CCRB Histories

- § 87(2)(b) has one previous CCRB case § 87(2)(b)
- PO Caldarera has been a member of service for five years and has one previous allegation, with no substantiations. § 87(2)(g)
- PO McLaughlin has been a member of service for two years and has no previous allegations.

- PO Rosa has been a member of service for one year and has three previous allegations, with no substantiations. § 87(2)(g)
- Sgt. Bennett has been a member of service for fourteen years and has four previous allegations, with no substantiations. Sgt. Bennett has one previous allegation of discourtesy.

Findings and Recommendations

Allegation A –Abuse of Authority: PO William Caldarera entered § 87(2)(b) in Queens.

Allegation B-Abuse of Authority: PO Kenneth McLaughlin entered § 87(2)(b) in Queens.

Allegation C- Abuse of Authority: PO Anthony Rosa entered § 87(2)(b) in Queens.

It is undisputed that a neighbor went with PO Caldarera, PO McLaughlin, and PO Rosa to § 87(2)(b)'s door, and that the officers pushed open the door to § 87(2)(b) and entered without damaging the door. It is further undisputed that once inside, the officers arrested § 87(2)(b) by putting his arms behind his back, and left without going anywhere else inside.

§ 87(2)(b) stated that he had a collision with a neighbor on the stairs. Following the collision, § 87(2)(b) went inside of his apartment and began watching football on television. While watching television, § 87(2)(b) heard loud knocking on his door, and heard the voice of his neighbor telling him to come outside. § 87(2)(b) then saw two police officers, PO Kenneth McLaughlin and PO Anthony Rosa, inside of his apartment. The officers had entered through the backdoor. The lock on the backdoor is not functional, and § 87(2)(b) put his bed in front of the door in order to secure it and keep it shut. PO McLaughlin and PO Rosa arrested § 87(2)(b) (02 Board Review).

PO Caldarera stated that he and PO Lopez were the first unit to respond to the location for a call of an assault in progress. PO Caldarera responded to the location immediately after the call came through, and arrived in less than five minutes. When PO Caldarera and PO Lopez entered the location, they observed § 87(2)(b) lying face down on the stairs between the first and second floor. § 87(2)(b) thought that his hip might be broken, and stated that he could not move. § 87(2)(b) and the neighbors told the officers that § 87(2)(b) had been pushed down the stairs by a man identified as § 87(2)(b). § 87(2)(b) told PO Caldarera that he was going to take pictures of a church procession, and that when he passed § 87(2)(b) on the stairs, he felt § 87(2)(b) push him from behind down the stairs. § 87(2)(b) fell, and also damaged his camera. PO Caldarera did not recall if § 87(2)(b) or the neighbors told him § 87(2)(b)'s name at that time. Either PO Caldarera or PO Lopez called an ambulance. There was a small group of neighbors surrounding § 87(2)(b) on the stairs. One of the neighbors walked to the third floor with PO Caldarera and PO Lopez, and showed them which apartment § 87(2)(b) lived in. PO Caldarera and PO Lopez knocked at the front door. The neighbor stated that § 87(2)(b) sometimes goes to the roof using the fire escape, so PO Lopez went up to the roof, and PO Caldarera remained at the door. PO McLaughlin and PO Rosa arrived. PO Caldarera and PO McLaughlin knocked at the back door, and PO Rosa knocked at the front door. PO Caldarera put

his hand to the doorknob, and the door was open. PO Caldarera intended on arresting § 87(2)(b) and entered the apartment. There was no furniture blocking the door. § 87(2)(b) was in a hallway off the room PO Caldarera entered, and PO Caldarera handcuffed § 87(2)(b) (07 Board Review).

PO McLaughlin stated that when he and PO Rosa arrived at the location, § 87(2)(b) was lying face down on the ground between the first and second floors. A small group of neighbors were standing around § 87(2)(b). § 87(2)(b) stated that he could not move. The neighbors told PO McLaughlin that a tenant on the third floor had pushed § 87(2)(b) down the stairs. PO McLaughlin and PO Rosa went to the third floor. PO Caldarera was on the third floor. PO McLaughlin knocked at the front door of § 87(2)(b)'s apartment and verbally identified himself as a police officer, while PO Caldarera knocked on the back door. PO McLaughlin was not sure if PO Rosa was standing with him, or with PO Caldarera. PO McLaughlin heard PO Caldarera say that he had gained entry to the apartment, and when PO McLaughlin turned around, PO Caldarera was already inside. PO McLaughlin and PO Rosa followed after PO Caldarera, and by the time they entered § 87(2)(b), § 87(2)(b) was already in handcuffs. PO McLaughlin intended on arresting § 87(2)(b) (03 Board Review).

PO Rosa stated that when he and PO McLaughlin arrived at the location, PO Caldarera and PO Lopez were inside, and § 87(2)(b) was lying face down on the ground between the first and second floors. A small group of neighbors were standing around § 87(2)(b). PO Lopez was speaking to § 87(2)(b). § 87(2)(b) was swollen and bleeding. The neighbors told PO Rosa and PO McLaughlin that a tenant on the third floor had pushed § 87(2)(b) down the stairs. PO Rosa and PO McLaughlin went to the third floor. PO Rosa and PO McLaughlin knocked at the front door of § 87(2)(b)'s apartment. PO Caldarera knocked on the back door. While PO Rosa was knocking, a neighbor came out of the door immediately next to § 87(2)(b)'s door, and told the officers that § 87(2)(b) had pushed § 87(2)(b) down the stairs, and was in his apartment. PO Rosa heard PO Caldarera say that he had gained entry to the apartment, and when PO Rosa turned around, PO Caldarera was already inside. PO Rosa and PO McLaughlin followed after PO Caldarera, and by the time they entered § 87(2)(b), § 87(2)(b) was already in handcuffs (04 Board Review).

People v. McBride 14 N.Y.3d 440 Officers may enter a dwelling without a warrant if they have probable cause to believe the suspect committed a crime and exigent circumstances justify the warrantless entry. In determining whether exigent circumstances are present, the following factors are considered: (1) the gravity or violent nature of the offense; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the subject will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry. The ultimate inquiry, however, is whether in light of all the facts of a particular case there is an urgent need justifying the warrantless entry (09 Board Review).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A**, **Allegation B**, and **Allegation C** be closed as **Exonerated**.

Allegation D- Discourtesy: At the 108th Precinct Stationhouse, Sergeant Steven Bennett spoke discourteously to § 87(2)(b)

Allegation E- Offensive Language: At the 108th Precinct Stationhouse, Sergeant Steven Bennett made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

§ 87(2)(b) is an attorney. § 87(2)(b) stated that while he was in the holding cells, Sgt. Bennett approached him and asked him what state he was barred in. § 87(2)(b) replied that he was barred in § 87(2)(b). Sgt. Bennett yelled to other officers that the “XO” knew “this asshole.” Sgt. Bennett then looked at § 87(2)(b) and said “cocksucker.” § 87(2)(b) has previously sent the “XO” emails, but did not receive any response. § 87(2)(b) does not otherwise know the “XO” (02 Board Review).

Sgt. Bennett stated that he did not refer to § 87(2)(b) as “this asshole,” or, “cocksucker.” Sgt. Bennett stated that he did not have any interaction with § 87(2)(b) at the stationhouse, and resumed patrol immediately after § 87(2)(b) (05 Board Review).

PO Caldarera (07 Board Review), PO McLaughlin (03 Board Review), PO Rosa (04 Board Review), and PO Lopez (06 Board Review) did not hear Sgt. Bennett refer to § 87(2)(b) as “this asshole,” or “cocksucker.” PO Caldarera, PO McLaughlin, PO Rosa, and PO Lopez did not hear Sgt. Bennett otherwise use discourteous language in interacting with § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** and **Allegation E** be closed as **Unsubstantiated**.

§ 87(2)(b), § 87(2)(g)

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date